

Stereo H.C.J.D.A 38
JUDGMENT SHEET
IN THE LAHORE HIGH COURT,
RAWALPINDI BENCH, RAWALPINDI.
(JUDICIAL DEPARTMENT)

C.S.R. No. 01-T of 2025
(The State Vs Intizar Hussain Shah)
&
Criminal Appeal No. 339 of 2025
(Intizar Hussain Shah Vs The State)

JUDGMENT

Date of hearing: **04.06.2026**

Appellant by: Ch. Tanveer Akhtar,
Advocate/Defence Counsel.

Complainant by: M/s Fakhar Hayyat Awan, Sheikh
Ahsan ud Din and Ch. Muhammad
Akhtar, Advocates.

State by: Muhammad Naeem Akbar, Deputy
Prosecutor General.

TANVEER AHMAD SHEIKH, J. Appellant Syed Intizar Hussain Shah, has challenged his conviction and sentence through the above cited criminal appeal. He was tried in case FIR No. 456/2024 dated 15.06.2024 under Sections 302 of PPC read with Section 7-ATA, 1997 and 3 of the Lawyer Welfare and Protection Act, 2023 registered at Police Station City, District Attock. At the culmination of trial, learned Judge Anti-Terrorism Court-1, Rawalpindi vide judgment dated 23.01.2025 convicted and sentenced the appellant as under:-

Intizar Hussain Shah

Under Section 302(b) of PPC.
Sentenced to Death on two counts.

Under Section 7(1)(a) of the ATA, 1997

Sentenced to Death.

Under Section 3 of the Lawyer's Welfare & Protection Act, 2023

Three (03) years Rigorous Imprisonment.

The appellant was also to pay Rs.10,00,000/- (ten lacs) by way of compensation u/s 544-A of Cr.P.C. to the legal heirs of the deceased Malik Israr Ahmad and same amount of compensation to the legal heirs of the other deceased Zulfiqar Mirza Advocate respectively. In case of default in payment of compensation, the appellant was to further undergo 02-years S.I.

As per section 7(2) ATA, whole property of appellant stood forfeited. All the sentences awarded to appellant were ordered to run concurrently. Benefit of Section 382-B of Cr.P.C. was given to appellant.

2. Feeling aggrieved of the above conviction and sentence, Intizar Hussain Shah-appellant filed Criminal Appeal No.339 of 2025, whereas the State has also preferred Capital Sentence Reference No.01-T of 2025 for confirmation of death sentence awarded to convict Intizar Hussain Shah or otherwise. We propose to dispose of both the matters through this single consolidated judgment.

3. In order to substantiate its case, the prosecution produced as many as seventeen witnesses in toto, the gist of which is being produced below for the facility of reference.

PW-1 (Sohail Aslam, A.S.I.) received complaint (**Exh.PA/1**) on 15.06.2024 and got generated computerized FIR (**Exh.PA**).

PW-2 (Tayyab Iqbal, Draftsman) Prepared computerized scaled site plan of the place of occurrence (**Exh.PB/1-4**).

PW-3 (Muhammad Nasir Abbas, Junior Forensic Scientist PFSA) visited the spot and collected two buccal swabs from both the dead bodies and made into seal parcels vide exhibit sheet (**Exh.PC**). He also collected samples of the blood from the place of occurrence vide exhibit sheet (**Exh.PD**).

PW-4 (Muhammad Shoaib 1673/C) was Naib Moharrar of Elite Force. He provided duty roster (**Exh.PE**) of appellant/accused and extract of register of arms and ammunition (**Exh.PF**) to I.O.

PW-5 (Abid Khan 889/C) brought complaint to Police Station for the registration of formal F.I.R.

PW-6 (Ghulam Zameer/HC) escorted dead body of Zulfiqar Ali Mirza, Advocate (deceased) to mortuary for post mortem examination.

PW-7 (Muhammad Naeem 85/HC) was Moharrar Malkhana. He kept certain sealed parcels into safe custody and then handed over the same to Sheraz Ahmad, Inspector/I.O. on his requirement.

PW-8 (Umar Farooq, A.S.I.) was Incharge Koat Elite Force, District Attock. He issued two weapons i.e. pistol .9 MM along with twenty live bullets and SMG along with thirty live bullets to appellant/A.S.I. on his request on 15.06.2024 and incorporated relevant entry (**Exh.PF/1**) in the register.

PW-9 (Yasir Tabassum 1610/C) was entrusted with the dead body of Malik Israr Ahmad, Advocate (deceased) for autopsy. He was given last worn clothes of above deceased after his post mortem was over. He attested memo (**Exh.PJ**).

PW-10 (Sabtain Mazhar, A.S.I.) was posted as Incharge Guard, Civil Courts, Attock. He captured the appellant at the gate hearing the report of hue and cry made by Muhammad Israr Khatak, Advocate and others. He handed over SMG rifle of appellant to Sheraz Ahmad, Inspector/I.O., who reached the spot. He attested memo (**Exh.PL**).

PW-11 (Tasawar Iqbal, A.S.I.) shifted the appellant/accused to Police Station City, Attock after he was captured. He got uniform of the appellant changed.

PW-12 (Sardar Tauseef Ahmed Khan) was complainant of the case as well as an eye witness to the occurrence. He also testified the motive set up by prosecution.

PW-13 (Rab Nawaz Hayyat) was another eye witness of the occurrence. He also reiterated the same story of incident, which was deposed by complainant (**PW-12**).

PW-14 (Shahzaib Hayat Khan) was Junior Computer Operator in the office of Senior Civil Judge, Attock. He was monitoring the CCTV camera system installed there. He copied and transferred relevant CCTV footage from DVR into USB regarding to 15.06.2024. He officially provided USB to I.O. on 22.06.2024 and attested memo (**Exh.PQ**).

PW-15 (Dr. Syed Irfan Ali Raza, APMO) was member of District Standing Medical Board, comprising of four persons constituted on 15.06.2024 for conducting the autopsy of dead bodies of both the deceased namely Malik Israr Ahmad and Zulfiqar Mirza, Advocates at DHQ Hospital, Attock. He observed seventeen injuries in toto on the person of Malik Israr Ahmad, Advocate (deceased) including seven entry wounds.

He also observed five injuries in toto on the dead body of Zulfiqar Ali Mirza, Advocate

(deceased). He testified post mortem report as **Exh.PHH** along with computerized report as **Exh.PLL** and other post mortem report **Exh.PDD** along with its computerized copy as **Exh.PGG**.

PW-16 (Sheraz Ahmed, Inspector) conducted investigation of the case. He reached DHQ Hospital, Attock on 15.06.2024, receiving the information about the incident and recorded statement of Sardar Tauseef Ahmad Khan, Advocate/complainant (**Exh.PA/1**). After inspection of both the dead bodies and sending the same to mortuary for autopsy, he proceeded to the spot and carried out all the investigational steps.

PW-17 (Sajjad Ahmad, Inspector) was second Investigation Officer of the case. He was entrusted with the file on 24.06.2024, upon the transfer of Sheraz Ahmad, Inspector (First I.O.). He completed the investigation and got prepared report under Section 173 of Cr.P.C.

4. On 21.12.2024, learned Prosecutor assisted by Mr. Fakhar Hayyat Awan, Advocate for the complainant gave up PWs namely Muhammad Israr Khatak, Advocate, Dr. Waqas Afzal, Dr. Kashif Hussain, Dr. Jawad Elahi, Mamraiz Khan, Muhammad Zulfiqar/C and Abdul Waheed, S.I. being un-necessary and after tendering in evidence Firearm and tools marks examination report (**Exh. PPP/1-2**) bearing serial No.0001114703-04, latent fingerprints examination report (**Exh.PQQ/1-4**) bearing serial No.0001094256, Audio Video Analysis report (**Exh.PRR**) having serial No.0001091541, Forensic DNA & Serology Analysis Report (**Exh.PSS/1-2**) bearing serial No.0001030320 and Forensic Histopathology report (**Exh.PTT**) having serial No.0001122681 closed the prosecution evidence.

5. After the closure of prosecution evidence, the appellant was examined under Section 342 of Cr.P.C. He did not opt to appear as witness in his own defence on oath under Section 340(2) of Cr.P.C., nor produced any evidence in defence.

6. Upon the conclusion of trial, the learned trial court vide judgment dated 23.01.2025 convicted and sentenced Intizar Hussain Shah (appellant) as mentioned above.

7. When the present appeal was fixed for arguments on 03.06.2026, repeated calls were made and matter was kept in wait for a considerable time, but no body appeared to represent the appellant. Therefore, Ch. Tanvir Akhtar, Advocate Supreme Court of Pakistan was appointed at State expense to represent the appellant. Case was adjourned. Service got effected upon appellant through Superintendent Jail as well as upon his learned counsel.

Today, the position was same and no body appeared on behalf of appellant despite of the repeated calls, as such arguments on behalf of both the sides were heard and record was perused from cover to cover with the able assistance rendered by them.

8. Case set up by prosecution was that on 15.06.2024 Sardar Tauseef Ahmad Khan, Advocate-complainant (**PW-12**) had invited Malik Israr Ahmad, Advocate (deceased) and Zulfiqar Mirza, Advocate (deceased) in his chamber for a cup of tea. Complainant (**PW-12**) and Dildar Shah, Advocate (not produced) were

present in the Veranda outside of the chamber of complainant (**PW-12**) and waiting for them (deceased persons). In the meanwhile, at about 10:25 a.m. both the deceaseds were coming towards the chamber of complainant (**PW-12**), that appellant (Intizar Hussain Shah, A.S.I.) in uniform, who was performing his duties as Security Incharge at Sessions Court premises, Attock, emerged from their back side along with his official SMG rifle. He raised Lalkara to Malik Israr Ahmad, Advocate (deceased) that he lost the case because of him and shouted that he would teach him a lesson today. Appellant made straight firing upon him (Malik Israr Ahmad, Advocate) with his official weapon (rifle SMG), hitting different parts of his body. Zulfiqar Mirza Advocate (deceased) moved ahead to rescue him (Malik Israr Ahmad, Advocate), whereupon appellant made straight firing also upon him (Zulfiqar Mirza, Advocate-deceased), which landed on different parts of his body. Complainant (**PW-12**), Dildar Shah (not produced) and Rab Nawaz Hayyat, Advocate (**PW-13**), while witnessing the occurrence, made hue and cry and ran towards the appellant, who ran towards main gate brandishing his weapon. Appellant was apprehended by the police officials present on duty on hue and cry raised by said witnesses. Official weapon was also taken away from him by those officials.

9. Said witnesses shifted both the deceased, then injureds to DHQ Hospital, Attock, but they succumbed to the injuries on the way. Sheraz Ahmad, Inspector/I.O. (**PW-16**) arrived in the hospital and recorded the statement (**Exh.PA/1**) of complainant (**PW-12**). After recording

necessary proceedings at the mortuary/hospital, the I.O. **(PW-16)** proceeded to the spot and carried out all the investigational steps.

10. Complainant **(PW-12)**, while appearing in the witness box testified almost the same story of incident, which was already revealed by him in statement **(Exh.PA/1)** before Investigating Officer. Rab Nawaz Hayyat, Advocate **(PW-13)**, being another eye witness to the occurrence also deposed on the same lines and endorsed him.

11. We observed that occurrence took place on 15.06.2024 at 10:25 a.m. and the matter was reported to police same day at 12:15 p.m (Noon). Said time was consumed in shifting the dead bodies of both the deceased, then injureds, to hospital, where I.O. **(PW-16)** reached and recorded the statement of Sardar Tauseef Ahmad Khan, Advocate-complainant **(PW-12)**. F.I.R. was registered with remarkable promptitude, which does not space any consultation and deliberation for the fabrication of the story of occurrence, hence has given it credibility and reliability.

12. File speaks that when the dead bodies reached the DHQ Hospital, Attock and relevant papers were provided to Dr. Syed Irfan Ali Raza **(PW-15)**, he immediately started the autopsy at about 01:30 p.m., as such said normal time consumed in conducting the autopsy upon the dead bodies of deceased persons cannot be regarded as fatal to prosecution case under such circumstances.

13. Prosecution case was mainly resting upon the evidence of complainant (**PW-12**) and Rab Nawaz Hayyat, Advocate (**PW-13**). They both were practicing as lawyers in the District Court premises Attock, where the incident took place. Their presence at the spot at relevant time was quite natural and established by surrounding circumstances. They cannot be termed as chance witnesses. They rendered minute detail of the incident in their evidence. They were having no grudge or ill-will against the appellant to involve him falsely in the present case. They were put to lengthy test of cross examination by learned defence counsel, but remained consistent regarding the time, date and vanue of the occurrence as well as mode and manner adopted by appellant. They could not be shattered. Neither any material contradiction, nor any infirmity, nor any legal flaw could be taken out of their cross examination except some small variations, which were naturally to occur when they appeared in the witness box after passing of considerable time. Above said small variations were between day and dawn and not between day and night. Hence, were not sufficient to disbelieve the testimony of witnesses. Occurrence took place in the broad day light. There was no chance of misidentification. It was a case of single accused, who happened to be an Assistant Sub-Inspector of Elite Force. Appellant got himself deployed at the said premises for duty and got issued said SMG rifle along with thirty live bullets and .9 MM pistol along with twenty live bullets on his request, as testified by Umar Farooq, A.S.I./Incharge Koat Elite Force, District Attock (**PW-8**), who also produced extract of relevant record/entry (**Exh.PF**) from the relevant register. It was suggestive of the fact that appellant was

fully determined to take the life of Malik Israr Ahmad Advocate at all cost. Appellant allegedly made fire shots consistently causing multiple fire arm entry wounds to Malik Israr Ahmad, Advocate (deceased), who was his prime target. When his colleague Zulfiqar Mirza, Advocate (deceased) moved ahead in order to rescue him, the appellant dealt him in the alike manner making multiple fire shots, hitting him on various parts of the body. When appellant ran towards the main gate of Sessions Court premises, after accomplishment of his object, he was captured there and then by the officials on duty at the main gate along with weapon of the offence. Evidence of both the above witnesses was straight forward and confidence inspiring, which could not be discarded merely on probabilities. We have believed the same.

14. Prosecution was also equipped with another piece of evidence. Sheraz Ahmad, Inspector (**PW-16**) took into possession CCTV footage of cameras, which were installed at the premises of District Court, Attock. It was played in the open court. It was showing the entry of appellant in the Court premises, while armed with official weapon. Shahzaib Hayat Khan, official/computer operator, who prepared the USB from DVR installed in the court of learned Senior Civil Judge, Attock, appeared as (**PW-14**) and testified about the said silent piece of evidence. It has also rendered some sort of help to prosecution case by confirming the presence of appellant within the court premises at relevant time.

15. Motive for the commission of offence was stated to be that appellant had appointed Malik Israr Ahmad, Advocate (deceased) as his counsel to defend a family case, instituted by his wife against him, wherein an order was passed, directing the appellant to pay maintenance allowance. Appellant also got instituted a petition under Section 22-A & 22-B of Cr.P.C. against the brothers of his wife through the said counsel (deceased), which was dismissed. Appellant was of the view that he had lost his case due to inefficiency of Malik Israr Ahmad, Advocate (deceased). He harbored above grudge in his mind. He was having strong reason and desire for the commission of murder of Malik Israr Ahmad, Advocate (deceased). Motive was testified by complainant (**PW-12**) and Rab Nawaz Hayat, Advocate (**PW-13**). Documentary proof of above cases was provided by **PW-13** to Sajjad Ahmad, Inspector/I.O. (**PW-17**), who secured the same vide (**Exh.PCC**). Said documentary evidence fully confirmed the motive alleged by prosecution.

16. Dr. Syed Irfan Ali Raza (**PW-15**) was one of the members of District Standing Medical Board, constituted for the autopsy of dead bodies of the deceased persons, on the ground that appellant happened to be a serving police official. He conducted autopsy on the dead body of both the deceased persons on 15.06.2024, when they were brought at IB-DHQ Hospital Attock. He started autopsy at 01:30 p.m. without causing any delay. He observed seventeen injuries in toto on the person of Malik Israr Ahmad, Advocate (deceased), out of which seven injuries were entry

wound having its corresponding exit wounds. He testified his post mortem report as (**Exh.PDD**).

Similar was the position of dead body of Zulfiqar Ali Mirza, Advocate (deceased), which was reflecting five injuries in toto. He testified his post mortem report as (**Exh.PHH**).

According to said doctor (**PW-15**), death of Zulfiqar Ali Mirza, Advocate (deceased) was accured due to cardio tamponade (compression of the heart due to pericardial effusion), which happened due to fire arm injuries.

Evidence of said witness rendered full corroboration and confirmation to the ocular account furnished by **PW-12** and **PW-13** regarding the location of the injuries, nature of the injuries and kind of the weapon used.

17. According to prosecution, after commission of the offence, the appellant ran towards the main gate, where he was apprehended by the police officials/security guards and weapon of the offence, official SMG rifle **P-41** was taken from him, vide recovery memo (**Exh.PL**). Crime empties (**P-42/1-24**) were also collected from the spot and secured through memo (**Exh.PK**). Above recoveries were testified by Sheraz Ahmad, Inspector (**PW-16**) and Sabtain Mazhar, A.S.I. (**PW-10**).

Said weapon SMG rifle was sent to PFSA. Crime empties were also sent to PFSA separately, which were

found to have been fired from the said weapon, vide report of PFSA (**Exh.PPP/1-2**). Above report rendered full support to prosecution case.

18. After the prosecution evidence was over, the appellant was examined under Section 342 of Cr.P.C., wherein he was confronted with all the pieces of incriminating material collected against him. In reply to the question ***why this case was registered against you and why the PWs deposed against you***", he pleaded false implication and professed complete innocence and claimed as under:-

"The prosecution wants to fix me in this case as I had previous enmity with the deceased Malik Israr. The enmity was due to three reasons, firstly, because I had taken my case from Malik Israr and given it to another lawyer and ever since then Malik Israr used to taunt/harass/intimidate me in Court premises. Secondly, because acting under the colour of my uniform I had nabbed an accused who used to manage an illegal gambling business. Malik Israr had asked me to not to take action against the accused and release him as Malik Israr was part and parcel of the gambling operation. Thirdly, all the PWs have deposed falsely against me because prosecution had made this case as a case of attack on lawyers. They are trying to paint me as a terrorist who had murdered lawyers."

Said plea of the appellant was only a bald assertion. It happened to be without any water and a talk in the vacuum, as such was discarded by us outrightly.

19. In the sequel to above discussion, we are confident to hold that ocular account furnished by **PW-12**

and **PW-13** was straight forward, consistent and confidence inspiring. Medical evidence testified by **PW-15** has fully explained and confirmed the fire arm injuries received by both the deceased. Apprehension of the appellant immediately after the commission of offence, within the court premises was also a very strong incriminating factor. Weapon of the offence recovered from him at the spot was found to have been matched with the crime empties collected from the spot. We are of the view that prosecution has successfully proved its case against the appellant for the commission of murder of two advocates, as such conviction and sentence awarded to him by the learned trial court was sustainable in the eye of law. We maintain the same. Since, murder of two innocent advocates was committed in a cruel and callous manner without any justification, as such we have also not found any mitigating circumstance in favour of the appellant.

20. So far as applicability of Section 7 of Anti-Terrorism Act, 1997 was concerned, we observed that appellant was performing his duty as security guard. His duty was to provide security to the general litigants as well as advocates and court staff, but instead of performing said duty, he took the law into his own hands. He, not only committed the murder of Malik Israr Ahmad, Advocate on a very trivial matter causing multiple fire arm injuries, but also did not spare his colleague Zulfiqar Ali Mirza, Advocate, who stepped forward in order to rescue him. He committed the murder within the fool proof/secured boundary of court premises, where general litigants, members of the courts staff, advocates and members of the

law enforcing agencies remain present whole of the day. Mode and manner adopted by appellant created atmosphere of the fear, insecurity and panic among all the above said communities, particularly the lawyer's community. Circumstances presented a dreadful picture. Therefore, the appellant has committed an offence as defined in Section 6(b) of the Anti-Terrorism Act, 1997, as such, his conviction for an offence under Section 7(1)(a) of ATA, 1997 was in accordance with law laid down by apex Court, hence not open to any exception.

21. Criminal appeal No.339 of 2025, has no force, hence dismissed. Capital Sentence Reference No.01-T of 2025 is replied in positive. Death sentence on two counts awarded to appellant is hereby confirmed.

(SYED AHSAN RAZA KAZMI)
JUDGE

(TANVIR AHMAD SHEIKH)
JUDGE

APPROVED FOR REPORTING.

JUDGE

JUDGE

Signed and dictated on 05.06.2026
Shahzad Ahmad Nasir*